



Republic of the Philippines  
Province of Surigao del Sur  
**MUNICIPALITY OF CARMEN**

POSTED:  
DATE: 3/27/2026  
BY: **MA. JULINA B. JUTILO**  
SB SECRETARY

**TANGGAPAN NG SANGGUNIANG BAYAN**

EXCERPTS FROM THE MINUTES OF THE 33<sup>RD</sup> REGULAR SESSION OF THE 14<sup>TH</sup> SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH 17, 2026

**PRESENT:**

Hon. Jane V. Plaza ..... Municipal Vice- Mayor/  
Presiding Officer

**REGULAR SANGGUNIANG BAYAN MEMBERS:**

|                          |       |           |
|--------------------------|-------|-----------|
| Hon. Carlos S. Estrada   | ..... | SB Member |
| Hon. Harvey S. Manawatao | ..... | SB Member |
| Hon. Tanie A. Quillano   | ..... | SB Member |
| Hon. Nilo S. Bigno       | ..... | SB Member |
| Hon. Daniel A. Tejol     | ..... | SB Member |
| Hon. Rencio P. Valeroso  | ..... | SB Member |
| Hon. Elvie U. Ohao       | ..... | SB Member |
| Hon. Michael C. Escuyos  | ..... | SB Member |

**ON OFFICIAL BUSINESS:**

**EX-OFFICIO MEMBERS:**

|                              |       |                         |
|------------------------------|-------|-------------------------|
| Hon. Blandena V. Sugian      | ..... | ABC President           |
| Hon. Jeff Anthony D. Beloria | ..... | SK Federation President |

**ORDINANCE NO. 36**  
**Series of 2026**

**“AN ORDINANCE RECOGNIZING AND REGULATING THE PAYMENT OF REAL PROPERTY TAX THROUGH AUTHORIZED REPRESENTATIVES, ENSURING COMPLIANCE WITH REPUBLIC ACT NO. 10173 (DATA PRIVACY ACT OF 2012), AND DIRECTING THE MUNICIPAL TREASURER OF THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR, TO ACCEPT SUCH PAYMENTS”**

Author: Hon. Michael C. Escuyos

Enacted: All Members Present

**EXPLANATORY NOTE**

This proposed Ordinance seeks to clarify that the payment of Real Property Tax (RPT) through duly authorized representatives is lawful and valid in the Municipality of Carmen, Surigao del Sur. Many property owners are unable to personally transact with the Municipal Treasurer’s Office due to age, disability, work or residence outside the municipality. Allowing authorized representatives to pay the RPT on their behalf facilitates timely tax compliance and efficient revenue collection. The Ordinance further clarifies that accepting RPT payments through authorized representatives does not violate

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Republic Act No. 10173, or the Data Privacy Act of 2012, as the processing of personal information in such transactions is necessary for the performance of a legal obligation and the exercise of official government functions. By directing the Municipal Treasurer to accept such payments, this measure promotes accessibility, efficiency, and good governance while ensuring compliance with data privacy standards.

**BE IT ORDAINED**, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

**Section 1. POLICY DECLARATION-** It is hereby declared the policy of the Municipality of Carmen to facilitate the efficient collection of Real Property Tax while ensuring that all personal data processed in the course thereof are handled in compliance with applicable laws, rules and regulations, particularly the Data Privacy Act of 2012.

**Section 2. PAYMENT THROUGH AUTHORIZED REPRESENTATIVES-** Payment of Real Property Tax may be made by a duly authorized representative of the registered owner or tax payer, subject to reasonable verification requirements as may be prescribed by the Municipal Treasurer.

**Section 3. PROOF OF AUTHORITY-** For purposes of issuance of Tax Declaration (TD) and Certification, an authorized representative shall present any of the following, as may be required:

- a) A written authorization or Special Power of Attorney (SPA)
- b) A valid government-issued identification of the representative
- c) Other supporting documents deemed necessary by the Municipal Treasurer to establish authority and identity.

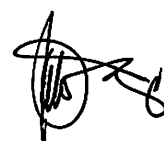
**Section 4. DUTIES OF THE MUNICIPAL TREASURER/TREASURY PERSONNEL-** The Municipal Treasurer is hereby directed to:

- a) Accept Real Property Tax payments made by authorized representatives in accordance with this Ordinance.
- b) Issue appropriate receipts in the name of the registered owner or taxpayer.
- c) Ensure that personal data collected are limited to what is necessary for tax collection purposes.
- d) Implement reasonable and appropriate measures to protect personal data in accordance with Republic Act No. 10173.

**Section 5. DATA PRIVACY COMPLIANCE-** All personal information obtained or processed in the implementation of this Ordinance shall be processed strictly for legitimate governmental purposes, in a manner consistent with the principles of transparency, proportionality and legitimate purpose under the Data Privacy Act of 2012 and its Implementing Rules and Regulations.

**Section 6. IMPLEMENTING GUIDELINES-** The Municipal Treasurer may issue internal guidelines or procedures to effectively implement this Ordinance, provided that such guidelines are consistent with existing laws and regulations.

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**Section 7. SEPARABILITY CLAUSE-** If any provision of this Ordinance is declared invalid or unconstitutional, the other provisions not affected thereby shall remain in full force and effect.

**Section 8. EFFECTIVITY-** This Ordinance shall take effect fifteen (15) days after its approval.

**ENACTED** this 17<sup>th</sup> day of March, 2026 at Carmen, Surigao del Sur.

**I HEREBY ATTEST** to the correctness of the foregoing Ordinance.

  
**MA. JULINA T. BORDA-JUTILO, LLB., J.D.**  
Secretary to the Sangguniang Bayan

**CERTIFIED CORRECT:**

  
**JANE V. PLAZA**  
Municipal Vice- Mayor/  
Presiding Officer

**APPROVED:**

  
**NESTOR S. VALEROSO**  
Municipal Mayor  
3-27-2026